

MODULAR ANNEX

Annex H

MUTUAL SAFETY HOLD PROTOCOL

Joint Technical Assessment of Damaged Nuclear Sites
with 14-Day Finite Hold and No Automatic Step-Back Protection

Self-Contained - Incorporable by Reference - No Restrictions - No Linkage

Incorporated by reference into:
Memorandum of Understanding Pertaining to PEACE (v7.0)
and the Provisional Steps Framework (v1.8)

Version 1.0 - June 2026

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PREAMBLE

The Memorandum of Understanding Pertaining to PEACE establishes IAEA access rights to declared nuclear facilities under Annex O (IAEA Access and Site Integrity Protocol). Several of these facilities sustained damage during the 2026 military confrontation, creating a tension between two legitimate interests: the United States' demand for timely IAEA verification access, and Iran's legitimate concern for the safety of IAEA inspectors entering structurally compromised or radiologically hazardous environments.

This Annex H resolves that tension through a finite, bounded safety hold mechanism. Iran retains the right to delay IAEA access for up to 14 days while joint technical teams conduct safety assessments. During that hold, Iran provides all available data to the IAEA. At the end of 14 days, access is either granted or the delay is treated as a denial under the MOU's standard compliance architecture.

The framework architecture respects both Parties' positions: Iran's safety concerns receive protection through a good-faith delay mechanism with no automatic penalty; the United States receives assurance that the hold is finite and that normal compliance rules apply once it expires.

Core Principles

- ☐ The safety hold is finite: 14 days maximum, non-extendable without unanimous Party consent.
- ☐ No automatic step-back applies during the 14-day safety hold. The hold is a protected operational window.
- ☐ Data sharing is mandatory during the hold: Iran provides all available telemetry and environmental data to the IAEA within 48 hours of hold invocation.
- ☐ Joint technical teams operate transparently: IAEA inspectors and Iranian nuclear safety officials work together during the hold period.
- ☐ Post-14-day denial is treated as a standard access denial: the denial falls under MOU Article 3.5 and Annex Q (IRGC Access Compliance Protocol), with the full tier classification and step-back architecture applying.

Modularity Clause

This Annex H is self-contained and incorporates into the Memorandum of Understanding Pertaining to PEACE and the Provisional Steps Framework by the sentence of adoption in Part D-1 of the MOU. It does not amend or supersede conflicting provisions of any parent framework unless the Parties explicitly so agree. In the event of inconsistency, this Annex H governs with respect to safety-related access delays at damaged nuclear facilities, joint technical assessments, and the 14-day mutual safety hold mechanism.

ARTICLE 1: DEFINITIONS

"Mutual Safety Hold"

A 14-day protected operational window during which Iran delays IAEA physical access to a damaged nuclear facility while joint technical teams conduct safety assessments. The hold activates upon Iran's written notification to the IAEA Director General and PCC Secretariat, and expires automatically at midnight UTC on the 14th day unless terminated earlier by mutual agreement.

"Imminent Safety or Radiological Hazard"

A condition at a damaged nuclear facility that poses a credible, immediate threat to the life or health of IAEA inspectors, including but not limited to: structural instability of buildings, tunnels, or containment vessels; elevated radiation levels exceeding IAEA safety thresholds for inspector exposure; unexploded ordnance or chemical contamination; compromised ventilation or cooling systems creating risk of airborne contamination; and any other condition certified by Iranian nuclear safety officials as posing an imminent threat.

"Credible Safety Justification"

A written technical assessment, prepared by the joint technical team (IAEA + Iranian nuclear safety officials) during the 14-day safety hold, that documents: the specific hazard identified; the data supporting the hazard determination; the proposed remediation or mitigation measures; and a timeline for hazard resolution. A credible safety justification requires the concurrence of at least one IAEA safety specialist on the joint technical team.

"Joint Technical Team"

A team comprising at least two IAEA nuclear safety inspectors and at least two Iranian nuclear safety officials from the AEOI or designated Iranian nuclear safety agencies. The team conducts remote assessments, robotic inspections, and data analysis during the 14-day safety hold. The IAEA and Iran each designate a team lead within 24 hours of hold invocation.

"Remote Assessment"

Evaluation of site conditions using telemetry, environmental sensors, satellite imagery, and other non-contact monitoring methods. Remote assessment does not require physical presence of inspectors at the damaged facility.

"Robotic Assessment"

Evaluation of site conditions using remotely operated vehicles, drones, or robotic equipment deployed by the joint technical team. Robotic assessment permits visual inspection and sensor data collection from within hazardous zones without exposing human inspectors to danger.

"Shared Telemetry Registry"

A secure digital platform, administered by the IAEA and accessible to all Parties in real time, that stores and displays all telemetry, environmental data, and assessment reports transmitted during the safety hold.

ARTICLE 2: INVOCATION OF THE MUTUAL SAFETY HOLD

2.1 Invocation Procedure

Iran invokes the Mutual Safety Hold by transmitting a written Safety Hold Notification to the IAEA Director General and the PCC Secretariat. The notification is transmitted within 24 hours of Iran's determination that an imminent safety or radiological hazard exists.

The Safety Hold Notification includes:

- ☐ The specific facility or site where the hazard is identified;
- ☐ A preliminary description of the hazard, including any available telemetry or environmental data;
- ☐ The estimated severity of the hazard (rated on the IAEA-INES scale or equivalent);
- ☐ The proposed composition of the joint technical team;
- ☐ The anticipated duration of the hold (not to exceed 14 days).

2.2 Immediate Actions upon Invocation

The following actions activate simultaneously upon receipt of the Safety Hold Notification by the IAEA Director General:

Timeframe	Action	Responsible Entity
T+0 to T+6 hours	IAEA Director General acknowledges receipt of IAEA / PCC Secretariat Safety Hold Notification; PCC Secretariat logs the hold in the Shared Telemetry Registry	
T+0 to T+24 hours	Iran and IAEA each designate a joint technical team lead; initial team composition is finalized	Iran / IAEA
T+0 to T+48 hours	Iran transmits all available telemetry and environmental data to the IAEA; data uploads to Shared Telemetry Registry	Iran
T+24 to T+72 hours	Joint technical team conducts initial remote assessment; IAEA evaluates credibility of hazard determination	Joint Technical Team
T+72 hours	If IAEA determines no credible hazard exists, hold terminates immediately and access is granted	IAEA

2.3 Good-Faith Requirement

Iran invokes the safety hold only in good faith, based on a genuine and reasonable determination that an imminent safety or radiological hazard exists. A safety hold invoked without a credible basis constitutes a Tier 2 material disruption under MOU Article 7.3. The IAEA, through its safety specialists on the joint technical team, evaluates the credibility of the hazard determination within 72 hours of hold invocation. If the IAEA determines that no credible hazard exists, the hold terminates immediately and Iran grants IAEA access without further delay.

2.4 Multiple Site Holds

If Iran identifies hazards at multiple damaged facilities simultaneously, a separate safety hold applies to each facility. Each hold operates on its own 14-day timeline. The holds are not aggregated or extended. Iran submits a separate Safety Hold Notification for each facility.

ARTICLE 3: THE 14-DAY SAFETY HOLD PERIOD

3.1 Joint Technical Team Operations

During the 14-day safety hold, the joint technical team conducts the following activities:

Day	Activity	Deliverable
Days 1-3	Remote assessment: analysis of telemetry, environmental sensors, satellite imagery	Initial hazard assessment report
Days 3-7	Robotic assessment: drone overflight, remotely operated vehicles, video documentation	Robotic survey report with visual evidence
Days 7-10	Joint analysis: IAEA and Iranian safety officials review all data; determine hazard severity and remediation options	Joint technical analysis report
Days 10-12	Remediation planning: if hazard is resolvable, develop and document remediation protocol	Remediation plan (if applicable)
Days 12-14	Final assessment: joint team certifies facility safety status; prepares final report	Final assessment report with access recommendation

3.2 Data Sharing Requirements

Iran provides the following data to the IAEA within the specified timeframes during the safety hold:

Data Category	Description	Timeframe
Environmental radiation readings	Gamma, neutron, and alpha radiation levels at the facility perimeter and interior	Within 48 hours
Air quality and ventilation data	Airborne particulate concentrations, ventilation system status, filter readings	Within 48 hours
Structural integrity assessments	Engineering reports on building, tunnel, and containment vessel stability	Within 72 hours
Cooling system telemetry	Temperature, pressure, and flow rate data for all active cooling systems	Within 48 hours
Photographic and video documentation	High-resolution imagery of damaged areas from Iranian sources	Within 72 hours
Historical facility operating data	Pre-damage operating parameters to establish baseline for damage assessment	Within 96 hours

3.3 IAEA Access to Joint Technical Team

The IAEA retains the right to designate up to four additional safety specialists to join the joint technical team during the 14-day hold. Iran approves or denies each designation within 24 hours. A denial requires written technical justification related to site safety, not political grounds. If Iran denies more than two IAEA designations for a single hold, the matter escalates to the PCC for review.

3.4 Progress Reports

The joint technical team submits a written progress report to the IAEA Director General and PCC Secretariat every 72 hours during the safety hold. Each report includes: the activities completed during the reporting period; the data collected and analyzed; any changes to the hazard assessment; the anticipated timeline for hazard resolution; and any recommendations for early termination or extension of the hold.

ARTICLE 4: THE 14-DAY DECISION POINT

At midnight UTC on the 14th day of the safety hold, the hold expires automatically. The joint technical team issues a final assessment report to the IAEA Director General and PCC Secretariat within 6 hours of hold expiration. The report certifies one of the following outcomes:

4.1 Outcome A: Access Granted

The joint technical team certifies that the hazard is resolved or sufficiently mitigated to permit safe IAEA inspector access. Iran grants IAEA access within 24 hours of certification. The IAEA schedules inspector access within 48 hours of certification. No step-back penalty applies. The safety hold concludes without adverse consequence.

4.2 Outcome B: Partial Access Granted

The joint technical team certifies that the hazard is resolved in some areas of the facility but persists in others. Iran grants IAEA access to the cleared areas within 24 hours of certification. A new safety hold applies only to the restricted areas, with a fresh 14-day timeline. The maximum number of consecutive holds for a single facility is three (42 days total). Beyond three holds, any further delay is treated as Outcome C.

4.3 Outcome C: Access Denied Without Credible Justification

The joint technical team certifies that no credible safety justification exists for continued denial of access, or Iran denies access despite the team's certification that the facility is safe. This outcome triggers the post-14-day denial protocol under Article 5.

4.4 Outcome D: Credible Justification Confirmed

The joint technical team unanimously certifies (all IAEA and Iranian members concurring) that a credible, unresolved safety hazard persists and that access remains unsafe. In this rare circumstance, the Parties negotiate a remediation plan through the PCC. The hold extends by mutual written agreement for up to 14 additional days. A single extension is permitted per facility; no second extension is granted.

Outcome	Access Status	Consequence	Next Step	Tier Impact
A	Granted	No penalty; IAEA schedules access within 48 hours	Full compliance resumes	None
B	Partial	No penalty; new 14-day hold for restricted areas only	Access to cleared areas within 24 hours	None for cleared areas
C	Denied (no justification)	Post-14-day denial under Article 5	Escalates to MOU Art. 3.5 / Annex Q	Tier 2 or 3
D	Denied (credible hazard confirmed)	Negotiated remediation through PCC; one 14-day extension permitted	Remediation plan developed; extension by mutual agreement	None during extension

ARTICLE 5: POST-14-DAY DENIAL CONSEQUENCES

5.1 Standard Access Denial Classification

If the 14-day safety hold expires without IAEA access being granted (Outcome C under Article 4), the denial is treated as a standard access denial under MOU Article 3.5 and Annex Q (IRGC Access Compliance Protocol). The full tier classification and step-back architecture of MOU Article 7.3 applies.

5.2 Tier Classification

A post-14-day denial without credible safety justification receives the following tier classification:

- ☐ First denial within any 180-day period: Tier 2 Material Disruption under MOU Article 7.3.
- ☐ Second denial within any 180-day period: Tier 3 Deliberate Hostile Violation under MOU Article 7.3.
- ☐ Third denial within any 365-day period: Material repudiation of the access provisions under the MOU's Partial Success Doctrine (MOU Article 8.9), with the United States retaining the right to treat the relevant access modules as terminated after 48 hours' notice.

5.3 Expedited Arbitration

PCA arbitration for post-14-day denials begins within 48 hours of the denial determination, consistent with Annex Q, Article 7. The expedited timeline applies: PCA ruling within 5 days of filing; provisional measures ordering mandatory access within 48 hours; and NTM evidence admissible subject to the collecting state's consent.

5.4 NTM Evidence

Guarantor states independently verify site conditions using national technical means during and after the safety hold. A finding by three or more guarantor states that no credible hazard exists at a facility where Iran maintains a denial creates a presumption of bad-faith invocation, rebuttable only by clear and convincing evidence from Iran. This presumption accelerates the tier classification by one level (Tier 2 becomes Tier 3).

ARTICLE 6: NO AUTOMATIC STEP-BACK DURING THE SAFETY HOLD

6.1 Explicit Protection

The framework architecture excludes automatic step-back during the 14-day safety hold. No tier classification, benefit reduction, escrow freeze, or penalty accrues during the hold period. The hold is a protected operational window.

This protection applies regardless of:

- ☐ The number of IAEA access requests pending at the time of hold invocation;
- ☐ The status of other MOU obligations (nuclear, maritime, economic);
- ☐ Any concurrent tier classification in another module.

6.2 What the Protection Does Not Cover

The safety hold protection does not extend to:

- ☐ Denial of access beyond the 14-day expiration (Article 5 applies);
- ☐ Failure to provide required data during the hold (data sharing failures constitute Tier 1 technical disputes);
- ☐ Obstruction of joint technical team operations (obstruction constitutes Tier 2 material disruption);
- ☐ Invocation of the hold without a credible basis (bad-faith invocation constitutes Tier 2 material disruption).

6.3 Post-Hold Transition

Upon expiration of the 14-day hold, the protection lifts automatically. If access is granted, no penalty applies and the compliance clock resumes from the point of access. If access is denied without credible justification, the denial is classified under Article 5 and the step-back architecture activates from the moment of denial. The step-back applies prospectively only; no retroactive penalty accrues for the 14-day hold period itself.

ARTICLE 7: RELATIONSHIP TO OTHER ANNEXES

Annex / Provision	Relationship	Governing Provision
MOU Article 3.5 (HEU Custody)	Post-14-day denial treated as denial under custody provisions	Annex H, Article 5
Annex O (IAEA Access)	Annex H governs safety-related delays; all other Annex O provisions apply	Annex H, Article 7.2
Annex P (Damaged Material)	Joint damage assessment procedures from Annex P apply during safety hold	Annex P, Article 2
Annex Q (IRGC Access)	Post-14-day denial under Annex Q classification and dispute resolution	Annex H, Article 5; Annex Q
Annex V-R (Verification Restoration)	Sequential relationship: V-R governs pre-signature baseline; Annex H governs post-signature holds	Annex H, Article 7.1
MOU Article 7.3 (Step-Back)	No step-back during 14-day hold; full step-back after hold expires for unjustified denials	Annex H, Article 6
MOU Article 8.9 (Partial Success)	Third denial within 365 days triggers material repudiation under Partial Success Doctrine	Annex H, Article 5.2

7.1 Distinction from Annex V-R

Annex V-R (Verification Restoration Protocol) establishes the pre-signature baseline inventory of declared facilities and damaged sites before MOU entry into force. Annex H operates after MOU entry into force, addressing ongoing safety concerns that arise during implementation. The two annexes are sequential, not overlapping: Annex V-R governs the pre-signature baseline; Annex H governs post-signature safety holds.

7.2 Integration with Annex O

Annex O (IAEA Access and Site Integrity Protocol) establishes the baseline access rights and damage assessment procedures. Annex H supplements Annex O by providing the specific mechanism for safety-related access delays. Where Annex O and Annex H conflict on safety-related delays, Annex H governs. All other Annex O provisions apply without modification.

7.3 Integration with Annex Q

Annex Q (IRGC Access Compliance Protocol) establishes the attribution and expedited consequences framework for access denials. After the 14-day safety hold expires, post-hold denials fall under Annex Q's classification and dispute resolution mechanisms. During the hold itself, Annex Q's expedited timeline is suspended.

ARTICLE 8: INCORPORATION BY REFERENCE

This Annex H incorporates into the Memorandum of Understanding Pertaining to PEACE and the Provisional Steps Framework by the following sentence of adoption:

"The Parties adopt Annex H (Mutual Safety Hold Protocol) as an operative provision of this Agreement. In the event of any inconsistency, Annex H governs with respect to safety-related access delays at damaged nuclear facilities, joint technical assessments, the 14-day mutual safety hold mechanism, and post-hold denial consequences."

No amendment of the parent MOU is required. This Annex enters into force upon signature by both Parties or provisional application by exchange of diplomatic notes.

ARTICLE 9: PROVISIONAL APPLICATION

The Parties apply this Annex H provisionally for 90 days, pending formal incorporation. Exchange of diplomatic notes between the United States and the Islamic Republic of Iran effects provisional application, with notification to the PCC Secretariat.

During provisional application, all provisions of this Annex H are operative and binding.

Either Party terminates provisional application with 14 days' written notice. Termination does not affect: safety holds already invoked during provisional application; joint technical team assessments already completed; or IAEA access granted during provisional application.

SIGNATURE BLOCK

For the Islamic Republic of Iran:	For the United States of America:
Name: _____	Name: _____
Title: _____	Title: _____
Date: _____	Date: _____

For verification purposes (IAEA, if applicable):
Name: Rafael Mariano Grossi, Director General
Date: _____

Annex H - Mutual Safety Hold Protocol - Version 1.0
14-day finite hold - No automatic step-back - Joint technical assessment
Immutable Present-Tense Matrix v2.5 governs all clause construction